

		counsel regarding the grant of this lien and has either taken the opportunity to seek such independent legal representation before signing this Agreement or, given Client's level of sophistication and business experience, has chosen not to do so.” Defendants signed the Retainer. There is no evidence of fraud or duress or that Defendants were forced to execute the Retainer. There is no evidence to support Defendants’ contention that the Retainer violates public policy. <u>Other Grounds in Opposition</u> Defendants contend that Plaintiff prevented them from collecting funds awarded in the underlying litigation, the Kern County case, and that such conduct bars equitable relief. However, “unclean hands,” as alleged, is not a defense to a motion to compel arbitration. Defendants contend that Code of Civil Procedure section 1281.2(c) permits denial of this Motion due to the “risk of inconsistent rulings.” Defendants contend they filed suit in Kern County Superior Court alleging professional negligence, fraud, etc.; that the Complaint and Summons have not yet been served; and ordering arbitration runs the risk of conflicting opinions and rulings. Although C.C.P. section 1281.2(c) allows for denial of a motion to compel arbitration due to a risk of inconsistent rulings, here, the Kern County action has not even been served, and there is no evidence that same would result in the risk of inconsistent rulings. Lastly, Defendants contend that they were not advised of the Retainer and the arbitration provision and the possible consequences thereof and thus it should not be enforced. Defendants cite to <i>Lawrence & Walzer & Gabrielson</i> (1989) 207 Cal.App.3d 1501 as legal authority. Here, unlike in <i>Lawrence</i>, the Retainer specifically states that claims involving breach of the Retainer and disputes concerning fees and costs “shall” be submitted to binding arbitration. As such, this argument is not a defense to arbitration. As set forth above, Defendants were provided the Retainer and they executed it. Again, “[i]t is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it.” (See <i>Stewart</i>, supra, 134 Cal.App.4th at 1588.) There is no “duty” by a law firm to advise its clients of the impact of signing an agreement that contains an arbitration provision. The Court GRANTS the petition and ORDERS this action stayed pursuant to C.C.P. section 1281.4 and sets a Status Conference re Arbitration for October 23, 2025 at 10:30 am in Dept. C34. Moving Party is to give notice.
2.	30-2023-01361390 Norris vs. Chavez-Nambo	Motion to Be Relieved as Counsel of Record The unopposed motion of attorney Fernando Vargas of Law Offices of Fernando D. Vargas to be relieved as counsel for Plaintiff Diona Shunte Norris is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362.

		The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. Moving attorney to provide notice.
3.	30-2022-01296297 Atkins vs. TLH Enterprises, LLC	Motion for Leave to Amend The Motion for Leave to Amend brought by Plaintiff Sonia Atkins is DENIED. Plaintiff neglected to attach a proposed pleading, as required by California Rules of Court rule 3.1324. (Cal. Rules of Court rule 3.1324(a)(1); See also <i>Hataishi v. First American Home Buyers Protection Corp.</i> (2014) 223 Cal.App.4th 1454, 1469.) The Court notes, however, that both Plaintiffs have submitted Declarations which indicate their desire to remove “John Doe” and the Defendants “Does 1-100” from the Complaint. (¶6 of Sonia Atkins Declaration and ¶4-¶6 of Christopher Atkins Declaration.) The Court is inclined to treat this motion and the attached declarations as a written request for dismissal of said defendants made pursuant to Code of Civil Procedure section 581, subdivision (b)(1) and to grant the same. “An action may be dismissed...[w]ith or without prejudice, upon written request of the plaintiff to the clerk, filed with papers in the case, or by oral or written request to the court at any time before the actual commencement of trial, upon payment of the costs, if any.” (Code Civ. Proc., § 581, subd. (b)(1).) “The proposition that a trial court may construe a motion bearing one label as a different type of motion is one that has existed for many decades.” (<i>Sole Energy Co. v. Petrominerals Corp.</i> (2005) 128 Cal.App.4th 187, 193.) “ ‘The nature of a motion is determined by the nature of the relief sought, not by the label attached to it.’ ” (<i>Ibid.</i>) Based on the above, and consistent with Plaintiffs’ request, John Doe and Doe Defendants 1-100 are ORDERED dismissed, without prejudice. Court to give notice.
4.	30-2022-01282583 Arend vs. Coast Community College District	Motion to Compel Compliance with Deposition Subpoena Defendant Coast Community College District’s (“District”) motion to compel Nonparty CalOptima Health (“CalOptima”) to comply with the District’s Deposition Subpoena for Production of Business Records pertaining to CalOptima’s treatment of Plaintiff Veronica Arend is CONTINUED to May 29, 2025 at 1:30 p.m. in Department C34. The Proof of Service filed in connection with CalOptima’s Objection to the Motion to compel Production of Records does not list Moving Party Defendant Coast Community College District (“District”) on the Service List. (See ROA 219.) The District did not file a Reply and instead filed a Notice of Non-Opposition (ROA 223), suggesting that the District was not served with the Objection/Opposition. CalOptima shall serve the District with a copy of the Objection and the accompanying Declaration filed as nos. 219 and 220 in the Register of Actions within 7 days of service of this order. The District may file a reply in accordance with the Code of Civil Procedure. Defendant Coast Community College District to give notice.